

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

2025CUOE054292: CHRISTOPHER RUIZ vs SIMI VALLEY FITNESS, LLC

09/02/2026 in Department 21

**Motions to Compel Further Responses of Defendant Simi Valley Fitness LLC to Plaintiffs
Request for Production of Documents Set One, Form Interrogatories (Employment), Form
Interrogatories (General), and Special Interrogatories, and Requests for Sanctions**

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motions:

- (1) Plaintiff Christopher Ruiz’s motion to compel further responses of Defendant Simi Valley Fitness, LLC to request for production of documents, set one, and request for sanctions;
- (2) Plaintiff Christopher Ruiz’s motion to compel further responses of Defendant Simi Valley Fitness, LLC to form interrogatories – employment law, set one, and request for sanctions;
- (3) Plaintiff Christopher Ruiz’s motion to compel further responses of Defendant Simi Valley Fitness, LLC to form interrogatories – general, set one, and request for sanctions; and
- (4) Plaintiff Christopher Ruiz’s motion to compel further responses of Defendant Simi Valley Fitness, LLC to special interrogatories, set one, and request for sanctions.

Tentative Ruling:

It is evident to this Court that there has been a failure on one of both sides to engage in a genuinely good faith meet and confer in an effort to avoid judicial intervention. The motions appear to be, or on their way to being, moot – and yet it seems that the moving party insists on having this Court invest the time and resources necessary to consider the motions as they were the day they were filed, and without substantive opposition. This the Court will not do. The parties are ordered to conduct a further meet and confer via video conferencing, to address any and all remaining issues. If Defendant has served the promised supplemental responses by the date of this hearing, these motions shall be taken off calendar as moot. If the responses have not

yet been served, although they should have been based on defense counsel's declaration, all four motions shall be continued to 10/30/26 at 8:30 a.m. The parties are ordered to meet and confer *over videoconference or in person* to address any remaining issues prior to the 10/30/26 hearing. The parties shall file a JOINT declaration with the court outlining with specificity the good faith meet and confer efforts undertaken and what items remain in dispute. The declaration shall be filed no later than 10/16/26.

At this point in time, the Court denies all requests for sanctions on the grounds that said sanctions would be unjust under the circumstances and further meet and confer efforts should have been accomplished.